

State of Vermont

House of Representatives



Montpelier, Vermont

Concurrent House Resolution

H.C.R. 304

Offered by Representatives Page of Newport City, Bailey of Hyde Park, Noyes of Wolcott, and Stevens of Waterbury
Offered by Senator Westman

House concurrent resolution celebrating the State House display of Julian Scott's Civil War masterpiece, *The Fourth Vermont Forming Under Fire*, and thanking those individuals who facilitated this historic artistic event

Whereas, the stunning Civil War painting *The Fourth Vermont Forming Under Fire* depicts the 1863 Chancellorsville Campaign (Virginia) rear guard action, under the overall leadership of Union Major General John Sedgwick of the Fourth Vermont Regiment, gallantly protecting the critical Sixth Corps, a contingent destined to play a major role in future battles, as both units crossed the Rappahannock River at Banks Ford (the Fourth being the last to cross), following a fierce confrontation with the Confederate troops under General Robert E. Lee, and

Whereas, New York patent attorney and diplomat Edwin Stoughton commissioned Julian Scott, a Johnson native; teenage Civil War fifer, drummer, and medic; one of our nation's youngest Medal of Honor recipients; and the creator of the four other magnificent Civil War paintings, including the centerpiece, *The First Vermont Brigade at the Battle of Cedar Creek*, which, for decades, have adorned the Cedar Creek Room in the State House, to artistically salute Stoughton's nephews, the brothers Charles and Edwin Stoughton, who served as Fourth Vermont Regiment commanders at different times, and

Whereas, the 1872 painting remained with the family into the 20th century; in 1983, a Texas oilman and cattleman, Patrick R. Rutherford, purchased it for his Houston, Texas, home; and, after his death in 2020, the Rutherford estate donated the painting to the University of Houston for temporary display and then to sell for scholarship revenue, and

Whereas, subsequently, Champlain Valley Union High School teacher and Civil War historian Tyler Alexander, while searching for an image to use on the cover of his new book, *If I Can Get Home This Fall: A Story of Love, Loss, and a Cause in the Civil War*, found an image of the painting, and, after months of further research, he discovered that Vermont art historian Robert Titterton had once appraised the painting, resulting in Tyler Alexander's learning that the artwork was then at a Houston auction house set for imminent sale, and

Whereas, Tyler Alexander immediately informed State Curator David Schutz, who, in turn, contacted Vermont Civil War historians Howard Coffin and Kevin Graffagnino, and, through these historians' timely involvement, the Manchester art collector and Vermont Country Store owner Lyman Orton placed the successful \$110,000.00 purchase bid, and

Whereas, Lyman Orton has graciously loaned the painting for display in the Cedar Creek Room, where a formal unveiling ceremony occurred on October 29, 2025, *now therefore be it*

Resolved by the Senate and House of Representatives:

That the General Assembly celebrates the State House display of Julian Scott's Civil War masterpiece, *The Fourth Vermont Forming Under Fire*, and thanks those individuals who facilitated this historic artistic event, *and be it further*

Resolved: That the Secretary of State be directed to send a copy of this resolution to Tyler Alexander, Lyman Orton, Howard Coffin, Kevin Graffagnino, David Schutz, and Robert Titterton.